

Opinion of the Court

a grand jury to consider the evidence this work produced does not retroactively transform that work from the administrative into the prosecutorial.⁷ A prosecutor may not shield his investigative work with the aegis of absolute immunity merely because, after a suspect is eventually arrested, indicted, and tried, that work may be retrospectively described as “preparation” for a possible trial; every prosecutor might then shield himself from liability for any constitutional wrong against innocent citizens by ensuring that they go to trial. When the functions of prosecutors and detectives are the same, as they were here, the immunity that protects them is also the same.

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We next consider petitioner’s claims regarding Fitzsimmons’ statements to the press. Petitioner alleged that, during the prosecutor’s public announcement of the indictment, Fitzsimmons made false assertions that numerous pieces of evidence, including the footprint evidence, tied Buckley to a burglary ring that committed the Nicarico murder. App. 12. Petitioner also alleged that Fitzsimmons released mug shots of him to the media, “which were prominently and repeatedly displayed on television and in the newspapers.” *Ibid.* Peti-

edly “fabricated” testimony, of course, they would not be entitled to anything more than qualified immunity.

⁷See *Imbler v. Pachtman*, 424 U. S. 409, 431, n. 33 (1976): “Preparation, both for the initiation of the criminal process and for a trial, may require the obtaining, reviewing, and evaluating of evidence. At some point, and with respect to some decisions, the prosecutor no doubt functions as an administrator rather than as an officer of the court. Drawing a proper line between these functions may present difficult questions, but this case does not require us to anticipate them.” Although the respondents rely on the first sentence of this passage to suggest that a prosecutor’s actions in “obtaining, reviewing, and evaluating” evidence are always protected by absolute immunity, the sentence that follows qualifies that suggestion. It confirms that some of these actions may fall on the administrative, rather than the judicial, end of the prosecutor’s activities, and therefore be entitled only to qualified immunity.